



U.S. Department
of Transportation

Research and
Special Programs
Administration

SEP 23 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11958

EXPIRATION DATE: October 31, 1997

1. GRANTEE: Nucor Steel
Darlington, SC
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of a hopper-type rail car in which the material being transported exceeds the load limit stenciled on the car. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.24b (d)(2).
5. BASIS: This emergency exemption is based on the application of Nucor Steel dated September 9, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous waste solid, n.o.s.	Class 9	NA3077	III

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging prescribed is a covered hopper-type rail car (#CSXT 226111) as authorized in 49 CFR Part 173, Subpart B. The hazardous waste loaded in the rail car exceeds the maximum weight of lading stenciled on the car by 2,340 lbs.
8. SPECIAL PROVISIONS: The car will be moved from Hamlet, N.C. to Floyd, S.C., a distance of approximately 70 miles.
9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.